

22CV05104 Diana Rodriguez vs Visiting Nurse & Hospice Care et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-07-10

Motion: Motion: Final Approval of Class Action Settlement

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/22cv05104-0>

Source SHA-256: 481ee1fe27050cfba119bf511876dc694d0468e9778c3199a3e96ed759743c46

Tentative Ruling: Diana Rodriguez vs Visiting Nurse & Hospice Care et al

Case Number

22CV05104

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 07/10/2026 - 10:00

Nature of Proceedings

Motion: Final Approval of Class Action Settlement

Tentative Ruling

For the reasons set forth herein, the motion of plaintiff for final approval of class action and PAGA settlement is granted. The court approves the terms set forth in the Settlement Agreement and finds that the Settlement Agreement is fair, adequate, and reasonable. The gross settlement amount is approved in the amount of \$699,999. The net settlement for distribution to the settlement class is approved in the amount of \$374,499.40. The requested attorney fees are approved in the amount of \$279,999.60. The requested reimbursement of litigation costs is approved in the amount of \$15,000. The requested incentive award to plaintiff is approved in the amount of \$7,500. The requested settlement administration costs are approved in the amount of \$8,000. PAGA penalties are approved in the amount of \$15,000, subject to the 75/25 split between the LWDA and aggrieved employees. Plaintiff is approved as the representative of the settlement class. Plaintiff's counsel of record is approved as counsel for the settlement class. Simpluris, Inc., is approved as the settlement administrator. Plaintiff shall lodge with the court a proposed judgment consistent with this ruling, the parties' Settlement Agreement, and the California Rules of Court. The parties shall effectuate the Settlement Agreement according to its terms.

Background:

On December 21, 2022, plaintiff Diana Rodriguez filed a class action complaint against defendants Visiting Nurse & Hospice Care (VNH), Visiting Nurse & Hospice Care of Santa Barbara (VNHSB), VNA Health, and Personal Care Services (Personal Care) (collectively, Defendants), alleging ten causes of action: (1) violation of Labor Code sections 510 and 1198; (2) violation of Labor Code sections 226.7 and 512, subdivision (a); (3) violation of Labor Code section 226.7; (4) violation of Labor Code sections 1194, 1197, and 1197.1; (5) violation of Labor Code sections 201 and 202; (6) violation of Labor Code section 204; (7) violation of Labor Code section 226, subdivision (a); (8) violation of Labor Code section 1174, subdivision (d); (9) violation of Labor Code sections 2800 and 2802; and (10) violation of Business and Professions Code section 17200, et seq.

As alleged in the complaint:

Defendants employed plaintiff as an hourly, non-exempt employee in California from April 2018 to June 2020. (Compl., ¶¶ 20-22.) During plaintiff's employment with Defendants, plaintiff worked over eight hours in a day or forty hours in a week. (Compl., ¶ 27.) Defendants failed to pay minimum and overtime wages to plaintiff, and failed to provide plaintiff with uninterrupted rest and meal periods; required plaintiff to remain on Defendants' premises during rest periods; rounded the work time recorded by plaintiff; failed to pay plaintiff wages owed upon discharge or resignation; failed to provide complete or accurate wage statements or to keep complete and accurate payroll records; and failed to reimburse plaintiff for necessary business-related expenses. (Compl., ¶¶ 30, 32, 35, 42-47 & 49-51.)

The complaint is brought on behalf of plaintiff, all current and former hourly-paid or non-exempt employees who worked for any of the Defendants within California at any time from four years preceding the filing of the complaint, and two subclasses of individuals who were subject to Defendants' alleged practice of rounding time or were required to stay on Defendants' premises for rest breaks. (Compl., ¶¶ 15-16.)

On February 22, 2023, VNHSB, doing business as VNH and VNA Health (from this point, Defendant), filed an answer to the complaint, generally denying its allegations and asserting thirty-five affirmative defenses.

On October 7, 2024, plaintiff filed a notice of conditional settlement of the entire case.

On January 27, 2025, the court signed and entered an order on the parties' stipulation, granting plaintiff leave to file a first amended complaint.

On February 6, 2025, plaintiff filed a first amended class action complaint (FAC) which adds an eleventh cause of action for violation of Labor Code section 2698 et seq. (the Labor Code Private Attorneys General Act of 2004 or PAGA). The FAC defines the proposed class as all current and former hourly-paid or non-exempt employees who worked for any of the Defendants within California at any time during the period from December 18, 2018; alleges that on September 6, 2023, plaintiff provided written notice to the Labor & Workforce Development Agency (the LWDA) of the provisions of PAGA alleged to have been violated in this action; and that plaintiff has not received response from the LWDA. (FAC, ¶¶ 16 & 25.) The allegations of the FAC are otherwise the same or similar as those appearing in the complaint.

On February 20, 2026, the court: granted preliminary approval (Preliminary Approval Order) of a proposed class action settlement described in a "Class Action and PAGA Settlement and Release Agreement" (the Settlement Agreement); certified a proposed class for settlement purposes; appointing plaintiff as the "Class Representative"; provisionally appointed attorneys Arby Aiwarzian, Joanna Ghosh, and Tara Zabehi of Lawyers for Justice, PC, as "Class Counsel"; approved a proposed "Notice of Class Action Settlement" (the Class Notice); directed the mailing of the Class Notice in accordance with the Settlement Agreement; approved Simpluris Inc. (Simpluris), as the "Settlement Administrator"; and scheduled a final approval hearing for July 10, 2026.

A copy of the Settlement Agreement was attached to the declaration of plaintiff's counsel, Tara Zabehi (Zabehi), submitted in support of the motion for preliminary approval. (Zabehi Dec., ¶ 6 & Exh. 2.) The Settlement Agreement was signed by plaintiff

on April 16, 2025, and ostensibly by Defendant on April 25, 2025. (Zabehi Dec., Exh. 2 at pdf p. 53.)

Pursuant to the terms of the Settlement Agreement, Defendant will pay, as a non-reversionary gross settlement amount or “GSA”, the amount of \$699,999 in consideration for the releases described in the Settlement Agreement and below, and will separately pay all employer payroll taxes. (Zabehi Dec., Exh. 2, ¶ 4.1.) Defendant will transmit the GSA to Simpluris, who the parties agree will administer the settlement, no later than fifteen calendar days after the “Effective Date” as that term is defined in the Settlement Agreement. (Zabehi Dec., Exh. 2, ¶¶ 1.2, 1.18 [definition of “Effective Date”], 4.1 & 5.2.)

Subject to the court’s approval, Simpluris will deduct and pay the following amounts from the GSA: (1) a “Class Representative Service Payment” to plaintiff in the amount of \$7,500; (2) attorney fees to Class Counsel not to exceed \$279,999.60, or 40 percent of the GSA (the Class Counsel Fees Payment); (3) costs and expenses incurred by Class Counsel not to exceed \$15,000 (the Class Counsel Litigation Costs Payment); (4) charges and expenses of Simpluris incurred to administer the settlement and not to exceed \$8,000 (the Administration Costs); and (5) a payment in the amount of \$15,000 for civil penalties under PAGA (the PAGA Payment or PAGA Penalties). (Zabehi Dec., Exh. 2, ¶¶ 1.3, 1.5-1.7, 1.13-1.14, 1.21, 1.35, 4.2, 4.2.1-4.2.3, 4.2.4.5.)

The PAGA Penalties will be allocated as follows: (1) the amount of \$11,250 or 75 percent will be paid to the LWDA under Labor Code section 2699, subdivision (i) (the LWDA PAGA Payment); and (2) the amount of \$3,750 or 25 percent of that payment will be paid to the “Aggrieved Employees”, who include all current and former non-exempt, hourly employees of Defendant who worked in California from September 6, 2022, through the date of preliminary approval of the Settlement Agreement (the PAGA Period). (Zabehi Dec., Exh. 2, ¶¶ 1.4, 1.26-1.27, 1.32, 4.2.4.5.)

The Aggrieved Employees will each receive a pro rata share of 25 percent of the PAGA Penalties (the Individual PAGA Payment), which Simpluris will calculate by dividing the Aggrieved Employees’ 25 percent share by the total number of pay periods during which the Aggrieved Employees worked for Defendant for at least one day (the PAGA Pay Period), and multiplying that result by each Aggrieved Employee’s individual PAGA Pay Period. (Zabehi Dec., Exh. 2, ¶¶ 1.24, 1.31-1.32, 4.2.4.5, 4.2.4.5.1.) The Aggrieved Employees will be responsible to pay any taxes owed on their Individual PAGA Payment. (Zabehi Dec., Exh. 2, ¶ 4.2.4.5.1.)

The “Class Members” or “Class” include all current and former non-exempt, hourly employees of Defendant who worked in California from December 21, 2018, through the date of preliminary approval (the Class Period). (Zabehi Dec., Exh. 2, ¶¶ 1.9 & 1.12.) To the extent the allocations and payments described above are approved by the court, the remaining amount that will be available for distribution to the Class (the net settlement amount or “NSA”) totals \$374,499. (See (Zabehi Dec., ¶ 7 & Exh. 2, ¶ 1.28.) If the court approves any of the payments from the GSA described above in a lesser amount, the Administrator will retain and allocate any remainder to the NSA. (Zabehi Dec., Exh. 2, ¶¶ 4.2.1-4.2.3, 4.2.4.5.2.)

The Administrator will divide the NSA by the total “Workweeks” worked by all Class Members, defined as any week in which a Class Member worked one calendar day for Defendant during the Class Period, exclusive of weeks that Class Member was out of work, to yield an “Estimated Workweek Value,” and will multiply each Class Member’s individual Workweeks by that value to determine that member’s estimated “Individual Settlement Share”, including that employee’s share of taxes and withholdings in regard to the “Wage Portion” described below. (Zabehi Dec., Exh. 2, ¶¶ 1.23, 1.45, 4.2.4.1.)

After final approval, the Administrator will divide the final NSA by the Workweeks of all Class Members who do not submit a valid and timely request to be excluded from the settlement (the Participating Class Members or, individually, Member) to yield a “Final Workweek Value”, and will multiply each Participating Class Member’s individual Workweeks by the Final Workweek Value to determine that member’s Individual Settlement Share. (Zabehi Dec., Exh. 2, ¶¶ 1.36, 1.43, 4.2.4.2.)

Fifteen percent of each Participating Class Member’s Individual Settlement Share will be allocated to the settlement of wage claims (the “Wage Portion”), and will be subject to tax withholding. (Zabehi Dec., Exh. 2, ¶ 4.2.4.3.) The remaining eighty-five percent of the Individual Settlement Share (the Individual Class Payment) will be allocated to the settlement of claims for disputed penalties, interest, and non-wage damages which are not subject to wage withholdings. (Zabehi Dec., Exh. 2, ¶¶ 1.22, 4.2.4.3.) The Administrator will withhold each employee’s share of taxes and withholdings with respect to the Wage

Portion of that employee's Individual Settlement Share, and issue checks to Participating Class Members representing the Individual Class Payment (i.e., the Individual Settlement Share net of taxes and withholdings). (Zabehi Dec., Exh. 2, ¶ 4.2.4.3.) Defendant's share of taxes and contributions on the Wage Portion of Individual Settlement Shares will be paid separately and in addition to the GSA. (Ibid.)

Class Members who opt out of the settlement by sending a valid and timely request to be excluded (the Non-Participating Class Members) will not receive an Individual Class Payment, and the amounts equal to their Individual Settlement Shares will be retained in the NSA for distribution to Participating Class Members on a pro rata basis. (Zabehi Dec., Exh. 2, ¶¶ 1.29 & 4.2.4.4.)

Defendant will, no later than twenty calendar days after the court grants preliminary approval, deliver to the Administrator each Class Member's name, last-known mailing address, social security number, and number of Workweeks and PAGA Pay Periods (the Class Data), which the Administrator will maintain in confidence and use only for purposes of the settlement. (Zabehi Dec., Exh. 2, ¶¶ 1.8 & 5.1.) The Settlement Agreement imposes on Defendant a continuing duty to immediately notify Class Counsel if it discovers that the Class Data omits any Class Member identifying information, and to provide corrected or updated Class Data as soon as reasonably feasible. (Zabehi Dec., Exh. 2, ¶ 5.1.)

Within fourteen days after Defendant funds the GSA, the Administrator will mail checks for all Individual Class Payments, Individual PAGA Payments, the LWDA PAGA Payment, the Administration Costs, the Class Counsel Fees Payment, the Class Counsel Litigation Costs Payment, and the Class Representative Service Payment. (Zabehi Dec., Exh. 2, ¶ 5.3.) Checks for Individual Class Payments and Individual PAGA Payments will be sent by first class mail and will prominently state the date each check will be voided, which will not be less than 180 days after the date of mailing. (Zabehi Dec., Exh. 2, ¶ 5.3.1.) Before mailing any checks, the Administrator must update each check recipient's mailing address using the National Change of Address Database. (Ibid.) All checks not cashed within 180 calendar days will be canceled. (Ibid.)

If a Participating Class Member's check is returned as undelivered with a forwarding address provided, the Administrator must re-mail that check within 7 days of receipt by the Administrator. (Zabehi Dec., Exh. 2, ¶ 5.3.2.) If a check is returned as undelivered without a forwarding address, the Administrator must use all reasonably available sources including the National Change of Address database, skip traces, or direct contact with the Class Member, to investigate and search for a current mailing address and, within 7 days, re-mail that check to any address ascertained through the Administrator's search. (Zabehi Dec., Exh. 2, ¶¶ 1.10 & 5.3.2.)

All funds represented by uncashed or cancelled checks will be transmitted by the Administrator to the California Controller's Unclaimed Property Fund in the name of the Class Member, leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure Section 384, subdivision (b). (Zabehi Dec., Exh. 2, ¶ 5.3.3.)

The "Released Parties" include Defendant, and its former and present "directors, officers, shareholders, partners, principals, consultants, related entities, parents, subsidiaries, managers, owners, members, employees, contractors, fiduciaries, beneficiaries, agents, affiliates, representatives, heirs, executors, attorneys, accountants, payroll companies, insurers, predecessors, successors, and assigns." (Zabehi Dec., Exh. 2, ¶ 1.42.) Plaintiff's release includes a waiver of rights under Civil Code section 1542. (Zabehi Dec., Exh. 2, ¶ 6.1.1.)

The Settlement Agreement requires the Participating Class Members to release Defendant and the Released Parties from: "all claims, causes of action, rights, demands, penalties, costs, and attorneys' fees arising during the Class Period under state, federal, or local law that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint and/or ascertained in the course of the Action..." (the Class Released Claims). (Zabehi Dec., Exh. 2, ¶ 6.2.) The Class Released Claims include "any and all statutory, constitutional, contractual, and/or common law claims for wages, reimbursements, damages, penalties, restitution, liquidated damages, interest, attorneys' fees, or litigation costs, including but not limited to claims arising under California Labor Code sections 201, 202, 203, 204, 218, 226, 226.7, 510, 512, 1174, 1174.5, 1194, 1194.2, 1197, 1197.1, 1198, 2800, and 2802, California Business and Professions Code section 17200, et seq., any IWC Wage Orders..." and any and all claims involving any alleged "(1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide compliant meal periods and associated premiums; (4) failure to provide compliant paid rest periods and associated premiums; (5) failure to timely pay wages upon termination; (6) failure to timely

pay wages during employment; (7) failure to provide compliant wage statements; (8) failure to keep requisite payroll records; (9) failure to reimburse necessary business expenses; and (10) violation of California's unfair competition law based on the aforementioned claims." (Ibid.)

Excluded from the release by the Participating Class Members described above are "any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period." (Zabehi Dec., Exh. 2, ¶ 6.2.)

The Settlement Agreement also provides that the Aggrieved Employees and the State of California release the Released Parties from "all claims for civil penalties under PAGA arising during the PAGA Period that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint, the PAGA Notice, and/or ascertained in the course of the Action...." (Zabehi Dec., Exh. 2, ¶ 6.3.) The PAGA Released Claims include claims for PAGA penalties arising under the same statutes and claims described above. (Ibid.)

The Settlement Agreement requires the Administrator to, no later than fourteen days after receiving the Class Data, mail the Class Notice in the form attached to that agreement. (Zabehi Dec., Exh. 2, ¶ 8.3.2.) Any Class Notice that is returned as undelivered with a forwarding address must be remailed by the Administrator no later than 3 days after receipt. (Zabehi Dec., Exh. 2, ¶ 8.3.3.) If a Class Notice is returned as undelivered without a forwarding address, the Administrator must conduct the same investigation and search described above in regard to the mailing of checks to Participating Class Members, and re-mail the Class Notice to the Class Member's most current address. (Ibid.) All response deadlines will be extended an additional fourteen days for Class Members whose Class Notice is re-mailed. (Zabehi Dec., Exh. 2, ¶ 8.3.4.)

Class Members may opt-out of the Settlement by emailing and mailing to the Administrator, a signed letter or "Request for Exclusion" that clearly communicates that member's election to be excluded from the Settlement Agreement and which must include that Class Member's full name, address and telephone number, and the last four digits of his or her social security number. (Zabehi Dec., Exh. 2, ¶¶ 1.43-1.44, 8.4.1.) A Request for Exclusion must be emailed or postmarked by the "Response Deadline", which is defined to mean forty-five calendar days after the initial mailing by the Administrator of the Class Notice, plus an additional fourteen calendar days for Class Members to whom Class Notices are resent. (Ibid.) Every Class Member who does not submit a timely and valid Request for Exclusion will be deemed to be a Participating Class Member under the Settlement Agreement. (Zabehi Dec., Exh. 2, ¶ 8.4.3.)

Each Class Member shall also have forty-five calendar days after the initial mailing of the Class Notice, plus an additional fourteen days as further described above if a Class Notice is re-mailed, to submit any written dispute concerning the number of Workweeks and PAGA Pay Periods allocated by the Administrator to that Class Member. (Zabehi Dec., Exh. 2, ¶ 8.5.)

The Settlement Agreement also sets forth the procedure by which Class Members may object to the settlement, including by appearing in court. (Zabehi Dec., Exh. 2, ¶ 8.6.)

Attorney Zabehi states that, based on data provided by Defendant, the Class is estimated to include 548 individuals who worked an estimated total of 67,328 workweeks between December 21, 2018, and August 31, 2025, for an average hourly pay of \$35. (Zabehi Dec., ¶¶ 13 & 30.) Based on Class Counsel's investigation and discovery, Zabehi states that there exists sufficient evidence to support the allegations made in these proceedings, and to show that Class Members were expected to perform similar job duties and subject to uniform operations, employment policies, practices, and procedures in regard to the payment of compensation, among other things. (Zabehi Dec., ¶ 14.)

According to attorney Zabehi, the parties participated in extensive settlement negotiations and a full-day mediation conducted by attorney Henry Bongiovi who Zabehi describes as a well-respected mediator experienced in mediating complex labor and employment matters. (Zabehi Dec., ¶ 23.) The parties exchanged information and engaged in discussions regarding their respective evaluations of the case; the risks and delays of further litigation; the law relating to off-the-clock theory, regular rate, rounding, meal and rest periods, and state wage-and-hour law and enforcement; the evidence produced by the parties; and the possibility of appeals, among other things. (Ibid.)

Zabehi asserts that the parties' settlement discussions and negotiations were adversarial and conducted at arm's length. (Zabehi Dec., ¶ 23.) Defendant and its counsel felt strongly about Defendant's ability to prevail on the merits, while plaintiff and Class Counsel believed that they would prevail at trial. (Ibid.) After conducting investigations, formal and informal discovery, exchange of information, extensive settlement negotiations, and with the aid of the mediator's evaluation, the parties agreed that this matter is well-suited for settlement given the legal issues relating to plaintiff's principal claims, as well as the costs and risks to both sides that would result from further litigation. (Ibid.) For these reasons, Zabehi asserts, the settlement is a fair, reasonable, and adequate resolution of the released claims. (Ibid.)

According to Zabehi, Class Counsel investigated the veracity, strength, and scope of the claims prior to reaching the proposed settlement, and plaintiff conducted investigation and formal and informal discovery regarding the facts of the case, which included the exchange, review, and analysis of thousands of pages of documents and data obtained from various sources. (Zabehi Dec., ¶ 24.) The data and documents reviewed or analyzed by Class Counsel included plaintiff's employment records, a detailed sampling of Class Member time data and pay records, Defendant's Employee Handbook, internal memoranda, new hire orientation checklists, job descriptions, an Employee Handbook Acknowledgment and Acknowledgment of Receipt of Policies, Applications for Employment, Employee Change of Status forms, New Employee Handout forms, and an At-Will Employment Agreement and Non-Harassment Policy, among other information and documents. (Ibid.) Class Counsel also interviewed plaintiff to gather facts and identify potential witnesses. (Ibid.)

Though Class Counsel is aware of Defendant's position and defenses, believes that plaintiff could obtain class certification despite many obstacles, Class Counsel accounted for the uncertainty and risk of the outcome of further litigation, the difficulties and delays inherent in such litigation, and the burdens of proof necessary to establish liability for the claims asserted in the lawsuit, Defendant's defenses, and the difficulties in establishing entitlement to monetary recovery. (Zabehi Dec., ¶ 26.)

For example, attorney Zabehi states that Defendant denies liability and wrongdoing of any kind associated with the claims alleged in the lawsuit, and whether this lawsuit is appropriate for class treatment for any purpose other than the settlement at issue. (Zabehi Dec., ¶ 27.) Attorney Zabehi further states that the parties interviewed witnesses and reviewed documents and information relating to the Class Members' employment with Defendant, and Defendant's operations and employment policies, practices, and procedures. (Ibid.) The available information enabled Class Counsel to assess and value the claims and prepare violation, damages, and analyses models. (Ibid.) Attorney Zabehi asserts that the settlement takes into account the strengths and weaknesses of each side's position and the uncertainties in regard to how the case might have concluded at trial or on appeal. (Ibid.)

Before reaching the settlement described in the Settlement Agreement, plaintiff calculated the potential and realistic values of the claims asserted in this action. (Zabehi Dec., ¶ 33.) To prepare those calculations, Class Counsel considered the information, data, and documents obtained from plaintiff, Defendant, and other sources; created violation, damages, and penalties valuations and models; and assumed an exposure based on plaintiff achieving class certification and proving all elements of the claims and damages asserted in this action. (Ibid.)

Attorney Zabehi states that the potential value of plaintiff's claim for failure to pay overtime wages is \$3,534,710.55 (calculated as 67,328 workweeks x 1 hours of unpaid overtime wages x overtime hourly rate of \$52.50 based on an average hourly rate of \$35). (Zabehi Dec., ¶ 33(a).) After applying a discount of 65 percent to account for the risks associated with obtaining and maintaining class certification; a discount of 70 percent to account for the risks associated with succeeding on the merits and establishing liability; and a discount of 85 percent to account for the risks associated with proving the extent of damages and obtaining an award thereof, attorney Zabehi asserts that the value of that claim is closer to \$55,671.69. (Ibid.)

The potential value of plaintiff's claim for failure to pay minimum wages is \$2,356,473.70 (67,328 workweeks x 1 hour of unpaid minimum wages x average hourly rate of \$35). (Zabehi Dec., ¶ 33(b).) After applying the same discount values described above, attorney Zabehi asserts that the value of that claim is closer to \$37,114.46. (Ibid.)

The potential value of plaintiff's claim for failure to provide compliant meal periods is \$4,712,947.40 (67,328 workweeks x 2 meal period premium x average hourly rate of \$35). (Zabehi Dec., ¶ 33(c).) After applying a discount of 60 percent to account

for the risks associated with obtaining and maintaining class certification; a discount of 65 percent to account for the risks associated with succeeding on the merits and establishing liability; and a discount of 85 percent to account for the risks associated with proving the extent of damages and obtaining an award, the value of that claim is closer to \$98,971.90. (Ibid.)

The potential value of plaintiff's claim for failure to provide compliant rest periods is \$4,712,947.40 (67,328 workweeks x 2 rest period premiums x average hourly rate of \$35). (Zabehi Dec., ¶ 33(d).) After applying a discounts of 60, 70, and 80 percent to account for, respectively, the risks associated with obtaining and maintaining class certification, the risks associated with succeeding on the merits and establishing liability, and the risks associated with proving the extent of damages and obtaining an award, attorney Zabehi contends that the value of that claim is closer to \$113,110.74. (Ibid.)

Attorney Zabehi further states that, based on data provided by Defendant, approximately 265 Class Members were terminated since December 21, 2019. (Zabehi Dec., ¶ 33(f).) Assuming that these individuals were not timely paid all wages due upon termination, the potential value of waiting time penalties total \$2,226,000, or approximately \$8,400 per individual (calculated as 265 individuals x [30 days x hourly rate of \$35 x 8 hours]). (Ibid.) After applying discounts to account for the same risks described above, the value of the claim for waiting time penalties is closer to \$35,059.50. (Ibid.)

Class Counsel calculated the potential value of plaintiff's claim for failure to provide compliant wage statements was calculated to be \$1,893,172.88 ([474 initial violations x \$50 statutory penalty] + [18,695 subsequent violations x \$100 statutory penalty]). (Zabehi Dec., ¶ 33(g).) After applying discounts to account for the risks discussed above, the value of that claim is closer to \$34,787.05. (Ibid.)

The potential value of the claim for failure to reimburse necessary business expenses was estimated to be \$134,655.64 (67,328 workweeks x \$2.00 unreimbursed business expenses). (Zabehi Dec., ¶ 33(i).) After applying the same or similar discounts to account for the risks described above, the value of that claim is closer to \$1,262.40. (Ibid.)

The PAGA Penalties were estimated by Class Counsel to total approximately \$745,986.77 (calculated as 383 aggrieved employees x \$1,950 in civil penalties). (Zabehi Dec., ¶ 33(j).) Attorney Zabehi asserts that, pursuant to Labor Code section 2699, subdivision (e)(2), the court can assess those penalties or reduce them based on the facts and circumstances of the case, to avoid an award that is unjust, arbitrary, oppressive, or confiscatory. (Ibid.) Attorney Zabehi states that, after applying discounts to account for the risks associated with PAGA manageability and with succeeding on the merits, and considering that the court has discretion to reduce civil penalties, the value of the PAGA Penalties is closer to \$13,987.25. (Ibid.)

Information appearing in the Zabehi declaration shows that the potential total value of this case is \$19,570,907.57 based on the values described above. (Zabehi Dec., ¶ 33(k).) After applying discounts for the risks further discussed above, attorney Zabehi states that the total potential value of this action is closer to \$375,977.73. (Ibid.) Attorney Zabehi asserts that, after considering the analysis set forth above, Class Counsel believes the settlement is fair, reasonable, adequate, and in the best interest of plaintiff, the Class, and the State of California. (Zabehi Dec., ¶¶ 34-35.)

Attorney Zabehi also includes in their declaration, a detailed description of the experience and qualifications of Class Counsel. (Zabehi Dec., ¶¶ 16-21.)

Plaintiff states that they decided to seek legal advice about their work experiences with Defendant and pursuing their grievances, and contacted Class Counsel. (Rodriguez Dec., ¶ 2.) Plaintiff asserts that they wanted to do whatever they could to make sure Defendant was held accountable for not properly compensating their employees for all hours worked, non-compliant meal and rest breaks, and failure to reimburse expenses. (Ibid.) Plaintiff consulted with Class Counsel, discussed plaintiff's situation, complex wage-and-hour class actions in general, and what it meant to be a named plaintiff, class representative, and PAGA representative. (Ibid.) Before commencing this case, plaintiff was informed of and came to understand the duties and responsibilities of a plaintiff, including if class certification were to be obtained and plaintiff were appointed as a representative of the class. (Ibid.)

Plaintiff describes the time and efforts they expended in this case to assist Class Counsel and to fulfill their responsibilities as a class representative and PAGA representative, which included gathering and reviewing documents concerning plaintiff's employment with Defendant, answering counsel's questions, providing guidance regarding the duties of other hourly paid non-exempt employees, identifying potential witnesses, and developing a strategy as to what documents and information to obtain from Defendant, among other things. (Rodriguez Dec., ¶¶ 3-4.) Plaintiff routinely checked in with their attorneys and staff to make sure that they had all of plaintiff's most current information and any additional information obtained by plaintiff. (Ibid.)

Plaintiff also reviewed the Settlement Agreement and discussed any questions with their attorneys before signing that agreement. (Rodriguez Dec., ¶ 5.) Plaintiff describes, and states that they understand, their duties if the court grants preliminary approval of the settlement described in the Settlement Agreement. (Rodriguez Dec., ¶¶ 6-7.) Plaintiff believes that their efforts helped to get the result obtained in this matter. (Rodriguez Dec., ¶ 8.)

Plaintiff has not entered into any undisclosed agreements, is not related to anyone associated with Class Counsel, and understands that the only compensation they will receive is the amount awarded by the court as a Class Representative Service Payment, and plaintiff's share of the settlement as a Class Member and Aggrieved Employee. (Rodriguez Dec., ¶¶ 9-10.)

On June 16, 2026, plaintiff filed a motion for final approval of the Settlement Agreement. The motion indicates that the notice packet was distributed per the terms of the Settlement Agreement. Simpluris received two requests for exclusions and no notice of objections. The motion is supported by a declaration from plaintiff's counsel, a declaration from Simpluris, and a declaration from plaintiff.

Analysis:

(1) Procedures for Approval of Class Action Settlement

"Rule 3.769 of the California Rules of Court (CRC) sets forth the procedures for settlement of class actions in California. [Citation.] A two-step process is required. First, the court preliminarily approves the settlement and the class members are notified as directed by the court. [Citation.] 'The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.' [Citation.] Second, the court conducts a final approval hearing to inquire into the fairness of the proposed settlement. [Citation.] If the court approves the settlement, a judgment is entered with provision for continued jurisdiction for the enforcement of the judgment. [Citation.]" (Cellphone Termination Fee Cases (2009) 180 Cal.App.4th 1110, 1118; see also Cal. Rules of Court, rule 3.769(c)-(f).)

(2) Preliminary Approval Order

"The court may make an order approving or denying certification of a provisional settlement class after the preliminary settlement hearing." (Cal. Rules of Court, rule 3.769(d).) "If the court grants preliminary approval, its order must include the time, date, and place of the final approval hearing; the notice to be given to the class; and any other matters deemed necessary for the proper conduct of a settlement hearing." (Id., rule 3.769(e).) Here, the court entered the Preliminary Approval Order on February 20, 2026, approved the notice packet attached to the Preliminary Approval Order and the procedures set forth therein, and set the final approval hearing for this hearing on July 10, 2026.

(3) Requirements of Class Certification for Purposes of Settlement

Code of Civil Procedure section 382 authorizes class actions "when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court, one or more may sue or defend for the benefit of all." (Code Civ. Proc., § 382.) "Class certification requires proof (1) of a sufficiently numerous,

ascertainable class, (2) of a well-defined community of interest, and (3) that certification will provide substantial benefits to litigants and the courts, i.e., that proceeding as a class is superior to other methods. [Citation.]” (Fireside Bank v. Superior Court (2007) 40 Cal.4th 1069, 1089.)

To determine whether a class is ascertainable, the court examines “(1) the class definition, (2) the size of the class, and (3) the means available for identifying class members. [Citation.]” (Reyes v. San Diego County Bd. of Supervisors (1987) 196 Cal.App.3d 1263, 1271.) “A related inquiry is manageability of the proposed class[.]” (Global Minerals & Metals Corp. v. Superior Court (2003) 113 Cal.App.4th 836, 849.) “The community of interest requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.” (Richmond v. Dart Industries, Inc. (1981) 29 Cal.3d 462, 470.)

For the reasons stated herein and in the court's Preliminary Approval Order, the evidence is sufficient to show that there exists a numerous, ascertainable class with a well-defined community of interest consisting of 635 potential class members who performed similar job duties, and who were subject to the same policies, practices, and procedures giving rise to the claims for meal and rest break violations, the purportedly unlawful payment of wages, the furnishing of inaccurate wage statements, and other matters alleged in the complaint. (See Weisel Dec., ¶¶ 5-8.) There also appears to be sufficient and reliable means available to identify class members from Defendants' records. (See *ibid.*) Plaintiff, who has agreed to serve as the Class Representative, appears to have claims typical of the Class and to be able to adequately represent the Class. Based on the above, there appears to be sufficient support for certification of the Class for settlement purposes.

(4) Notice to Settlement Class Members

“If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.” (Cal. Rules of Court, rule 3.769(f).)

“The content of the class notice is subject to court approval. If class members are to be given the right to request exclusion from the class, the notice must include the following: [¶] (1) A brief explanation of the case, including the basic contentions or denials of the parties; [¶] (2) A statement that the court will exclude the member from the class if the member so requests by a specified date; [¶] (3) A procedure for the member to follow in requesting exclusion from the class; [¶] (4) A statement that the judgment, whether favorable or not, will bind all members who do not request exclusion; and [¶] (5) A statement that any member who does not request exclusion may, if the member so desires, enter an appearance through counsel.” (Cal. Rules of Court, rule 3.766(d).)

“In determining the manner of the notice, the court must consider: [¶] (1) The interests of the class; [¶] (2) The type of relief requested; [¶] (3) The stake of the individual class members; [¶] (4) The cost of notifying class members; [¶] (5) The resources of the parties; [¶] (6) The possible prejudice to class members who do not receive notice; and [¶] (7) The res judicata effect on class members. (Cal. Rules of Court, rule 3.766(e).)

For the reasons stated herein and in the court's Preliminary Approval Order, the court finds the Class Notice is easy to understand, appraises Class Members of the pendency of and the claims and defenses asserted in the present action, explains each Class Member's rights and obligations in connection with the proposed settlement, and notifies the Class of their right and opportunity to opt out or present objections to the Settlement Agreement. For these reasons, the court finds that the Class Notice complies with due process. (Martorana v. Marlin & Saltzman (2009) 175 Cal.App.4th 685, 694-695.)

The court finds that the contents and procedures for notice were reasonably calculated to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections or request exclusion. (See Cal. Rules of Court, rule 3.769 (f).) The notice meets the statutory requirements. (See *id.*, rule 3.766(d)-(f).) The court finds that the notice procedures set forth in the Settlement Agreement and effectuated pursuant to the Preliminary Approval Order constitute the best notice practicable under the circumstances. (See Preliminary Approval Order, Exh. 1.) The evidence demonstrates that

the notice procedures set forth in the Settlement Agreement and Preliminary Approval Order have been implemented. (See Weisel Dec., ¶¶ 4-13.)

(5) Fairness of Class Action Settlement

“Before final approval, the court must conduct an inquiry into the fairness of the proposed settlement.” (Cal. Rules of Court, rule 3.769.) “The trial court has broad discretion to determine whether the settlement is fair. [Citation.] It should consider relevant factors, such as the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement. [Citation.] The list of factors is not exhaustive and should be tailored to each case. Due regard should be given to what is otherwise a private consensual agreement between the parties. The inquiry ‘must be limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.’ ” (Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1801 (Dunk).) “[A] a presumption of fairness exists where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (Id. at p. 1802.)

This is a non-revisionary class settlement. The gross settlement amount is \$699,999. The estimated net settlement amount to distribute to settlement class members is \$374,499.40. There are an estimated 633 participating class members. (See Weisel Dec., ¶ 14.) The average individual settlement payment is estimated to be \$591.62. (See Weisel Dec., ¶ 16.) The highest individual settlement payment is estimated to be \$2,000.64. (Ibid.) The lowest individual settlement payment is estimated to be \$5.34. (Ibid.)

The evidence demonstrates the Settlement Agreement is the result of arm’s length negotiations informed by adequate factual and legal investigations. The Settlement Agreement was reached with the participation and the assistance of an experienced class action mediator. The involvement of a mediator strongly weighs in favor of finding that the Settlement Agreement represents a non-collusive and arm’s-length agreement. (See Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 128-129.) “The court undoubtedly should give considerable weight to the competency and integrity of counsel and the involvement of a neutral mediator in assuring itself that a settlement agreement represents an arm’s length transaction entered without self-dealing or other potential misconduct.” (Id. at p. 129.)

Class counsel has substantial experience and expertise in this area of law. Only two requests for exclusion have been received. (See Weisel Dec., ¶ 11.) There have been no objections. (See Weisel Dec., ¶ 12.) There have been no disputes as to the workweek calculations. (See Weisel Dec., ¶ 13.) Under these circumstances, a presumption of fairness exists as to the Settlement Agreement. (See Dunk, supra, 48 Cal.App.4th at p. 1802.)

The court notes there are risks involved in litigating this action through trial, including that class certification might be denied or only partially granted, or class-wide liability might be substantially less than the maximum potential exposure. The court has considered potential defenses to liability including that the Defendant may argue it acted in good faith as to the alleged wage violations. The available evidence and information appearing in the motion and discussed above shows that plaintiff has engaged in informal investigations and discovery to which Defendant has responded by providing relevant data and records. The Settlement Agreement also appears to be the product of adversarial discussions and negotiations by the parties, and a mediation. There is no evidence to suggest that the Settlement Agreement is the product of collusion. In addition, plaintiff has presented evidence of the risks of uncertainty associated with protracted litigation, including with respect to the defenses asserted by Defendant, and potential difficulties in certifying the class, among other things.

The court has also considered the likely duration of litigating this action through trial and a potential recovery that is less than the maximum amount of liability. The court has considered the views of experienced class counsel regarding such risks and the relative certainty of settlement compared to continued litigation. The court has considered the benefits to the settlement class if the Settlement Agreement is approved compared to potential benefits if the litigation continues. The court has also considered the absence, to date, of any objections from settlement class members and that there are only two requests for

exclusion.

Based on all these circumstances, the court concludes that the Settlement Agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the Settlement Agreement, taken as a whole, is fair, reasonable and adequate to all concerned. (See *Dunk*, supra, 48 Cal.App.4th at pp. 1801-1802.)

(6) Scope of Class Release

"A class action settlement must be approved by the court to protect 'class members ... whose rights may not have been given due regard by the negotiating parties.' [Citation.] Consequently, courts must remain vigilant and ensure that class releases do not extend to claims that are beyond the scope of the allegations in the complaint. Releases must be appropriately tethered to the complaint's factual allegations. ... Requiring a reasonable connection prevents the release from extending to claims that are only remotely related to the allegations in the complaint." (*Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538 (*Amaro*)). The court finds that the class release in the Settlement Agreement is appropriately tethered to the factual allegations in this action. The release does not extend beyond the scope of the allegations. The release is reasonably connected to the factual allegations and legal theories alleged in this action, and the released claims involve the same primary rights being litigated in this action. (See *Amaro*, supra, 69 Cal.App.5th at p. 538.) The court understands the release by the Class Members to be limited to claims based on or reasonably arising from the facts alleged in this action and within the scope of the allegations of the complaint and FAC only, including as to those facts which give rise to plaintiff's claim for penalties under PAGA.

(7) Fairness of PAGA Settlement

PAGA is set forth in Labor Code sections 2698 through 2699.8. A PAGA action is a type of *qui tam* action, in which a private party is authorized to bring an action to recover a penalty on behalf of the government and receive part of the recovery as compensation. (*Huff v. Securitas Sec. Servs. USA, Inc.* (2018) 23 Cal.App.5th 745, 753.) "In bringing such an action, the aggrieved employee acts as the proxy or agent of state labor law enforcement agencies, representing the same legal right and interest as those agencies, in a proceeding that is designed to protect the public, not to benefit private parties." (*Amalgamated Transit Union, Local 1756, AFL-CIO v. Superior Court* (2009) 46 Cal.4th 993, 1003.) The dispute is between the employer and the state. (*Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 81.) "Of the civil penalties recovered, 75 percent goes to the Labor and Workforce Development Agency [LWDA], leaving the remaining 25 percent for the 'aggrieved employees.'" (*Ibid.*) Although this allocation has been changed by amendment, the 75/25 allocation still applies to this action. (See Lab. Code, § 2699, subd. (v).)

"The superior court shall review and approve any settlement of any civil action filed pursuant to this part. The proposed settlement shall be submitted to the [LWDA] at the same time that it is submitted to the court." (Lab. Code, § 2699, subd. (s)(2).) "A copy of the superior court's judgment in any civil action filed pursuant to this part and any other order in that action that either provides for or denies an award of civil penalties under this code shall be submitted to the agency within 10 days after entry of the judgment or order." (*Id.*, subd. (s)(3).) Here, the Settlement Agreement was submitted to the LWDA on September 11, 2025. (*Bass Decl.*, filed February 5, 2026, Exh. 1.) There has been no appearance by the LWDA in this action.

"Because many of the factors used to evaluate class action settlements bear on a settlement's fairness—including the strength of the plaintiff's case, the risk, the stage of the proceeding, the complexity and likely duration of further litigation, and the settlement amount—these factors can be useful in evaluating the fairness of a PAGA settlement. [¶] Given PAGA's purpose to protect the public interest, we also agree with the LWDA and federal district courts that have found it appropriate to review a PAGA settlement to ascertain whether a settlement is fair in view of PAGA's purposes and policies. [Citations.] We therefore hold that a trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77 (*Moniz*), disapproved on other grounds in *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664, 710.)

Here, there are 345 PAGA members. (See Weisel Dec., ¶ 7.) The agreed upon PAGA penalties are \$15,000. \$3,750 (25 percent) will be paid to the eligible PAGA members based on their proportional share of the workweeks and \$11,250 (75 percent) will be paid to the LWDA. The issues addressed by the PAGA penalties substantially overlap with the violations addressed by the class settlement. Under these circumstances, the court finds that the purposes of PAGA to remediate prior violations and deter future ones is largely achieved by the proposed class settlement. For all these reasons, the court concludes that the PAGA penalties in the Settlement Agreement as part of the overall settlement structure appears reasonable, fair, and adequate. (See *Davis v. Brown Shoe Company, Inc.* (E.D. Cal., Nov. 3, 2015) 2015 WL 6697929, at *12 [\$5,000 in PAGA penalties in a \$1.5 million class settlement]); *Lusby v. GameStop Inc.* (N.D. Cal., Mar. 31, 2015) 2015 WL 1501095, at *2 [\$5,000 in PAGA penalties in a \$750,000 class settlement].)

(8) Scope of PAGA Release

“Taken together, PAGA’s statutory scheme and the principles of preclusion allow, or ‘authorize,’ a PAGA plaintiff to bind the state to a judgment through litigation that could extinguish PAGA claims that were not specifically listed in the PAGA notice where those claims involve the same primary right litigated. Because a PAGA plaintiff is authorized to settle a PAGA representative action with court approval [citation], it logically follows that he or she is authorized to bind the state to a settlement releasing claims commensurate with those that would be barred by res judicata in a subsequent suit had the settling suit been litigated to judgment by the state.” (Moniz, supra, 72 Cal.App.5th at p. 83.) The court finds that the PAGA release in the Settlement Agreement is appropriately tethered to the factual allegations in this action. The release does not extend beyond the scope of the allegations. The release is reasonably connected to the factual allegations and legal theories alleged in this action, and the released claims involve the same primary rights being litigated in this action. (See Amaro, supra, 69 Cal.App.5th at p. 538; Moniz, supra, 72 Cal.App.5th at p. 83.)

(9) Attorney Fees

Recovery of attorney fees and costs are available to a prevailing plaintiff under statutes applicable to claims at issue in this action. (See Labor Code §§ 218.5, 218.6, 226, subd. (h), 1194, subd. (a), 2699, subd. (k)(1).) The Settlement Agreement permits plaintiff to seek recovery of attorney fees in the amount not to exceed \$279,999.60. The court must approve the attorney fee component of a class action or PAGA settlement. (Cal. Rules of Court, rule 3.769(b); Lab. Code, § 2699, subd. (s)(2).) Class counsel is seeking attorney fees equal to 40 percent of the GSA of \$699,999, or \$279,999.60.

“We join the overwhelming majority of federal and state courts in holding that when class action litigation establishes a monetary fund for the benefit of the class members, and the trial court in its equitable powers awards class counsel a fee out of that fund, the court may determine the amount of a reasonable fee by choosing an appropriate percentage of the fund created.” (Laffitte v. Robert Half Internat. Inc. (2016) 1 Cal.5th 480, 503-506 (Laffitte) [affirming attorney fee award of one-third of common fund class action settlement with lodestar cross-check].)

“Under the lodestar [cross-check] method, attorney’s fees are calculated by first multiplying the number of hours reasonably expended on the litigation by a reasonable hourly rate of compensation.” (Syers Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 697.) “[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) “The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (Ibid.)

“A lodestar cross-check is simply a quantitative method for bringing a measure of the time spent by counsel into the trial court’s reasonableness determination; as such, it is not likely to radically alter the incentives created by a court’s use of the percentage method. ... the lodestar calculation, when used in this manner, does not override the trial court’s primary determination of the fee as a percentage of the common fund and thus does not impose an absolute maximum or minimum on the potential fee award.” (Laffitte, supra, 1 Cal.5th at p. 505.) Based on class counsel’s declaration, counsel’s current lodestar reflects approximately 299.30 hours of work at the rate of \$850 per hour, resulting in \$254,405 in lodestar fees.

(Bass Decl., filed June 16, 2026 (hereafter, Bass Decl.), ¶¶ 12-13, Exh. 1.) Class counsel notes that this matter was taken on a pure contingency arrangement including a 40 percent contingency fee agreement with plaintiff, with no guarantee of any payment. (Bass Decl., ¶ 10.) As part of this contingency risk, class counsel incurred significant out-of-pocket expenses on behalf of the settlement class in the amount of \$15,251.74. (Bass Decl., ¶ 20, Exh. 2.) This matter has been pending since 2022. There have been no objections to the attorney fee award after notice to the putative class and only two requests for exclusion.

Based on the above and the positive result of the Settlement Agreement, the court will approve attorney fees in the amount \$279,999.60, or 40 percent of the total settlement amount of \$699,999. Considering all the circumstances, the court finds this amount reasonable and consistent with the community standards in light of all the relevant circumstances. (See Laffitte, supra, 1 Cal.5th 480 at pp. 503-506.)

(10) Litigation Costs

Class counsel incurred out-of-pocket litigation costs of \$15,251.74. (Bass Decl., ¶ 20, Exh. 2.) The court finds these amounts reasonable and necessary costs pertaining to the litigation. The court will approve out-of-pocket litigation costs in the amount of \$15,000, as permitted in the Settlement Agreement.

(11) Incentive Award

An “incentive award is appropriate ‘if it is necessary to induce an individual to participate in the suit,’ and have noted ‘relevant factors’ to consider in deciding whether such an award is warranted. [Citation.] Those factors include ‘the actions the plaintiff has taken to protect the interests of the class, the degree to which the class has benefitted from those actions, and the amount of time and effort the plaintiff expended in pursuing the litigation.’ [Citation.] Federal district courts have identified other factors as well, including ‘the risk to the class representative in commencing suit, both financial and otherwise,’ ‘the notoriety and personal difficulties encountered by the class representative,’ the duration of the litigation, and ‘the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation.’” (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 804.)

Plaintiff’s motion seeks approval of an incentive award payable to the named plaintiff in the amount of \$7,500.00. (Bass Decl., ¶ 21.) Plaintiff took unique risks to act as the class representative in this action including potential retaliation from future employers. Plaintiff was the only class representative. Without plaintiff’s participation, the Settlement Agreement would likely not have been possible. The Settlement Agreement will confer substantial benefits on plaintiff’s former colleagues and members of the settlement class. Class counsel has confirmed plaintiff’s substantial participation and support. Considering all the circumstances, the court finds that this incentive award is appropriate in light of the time and effort plaintiff dedicated to this action, the personal risks associated with her participation, the reasonable amount necessary to incentivize her participation in this action, and the substantial benefits conferred on the settlement class.

(12) Settlement Administrator Costs

The court has reviewed the costs associated with administering the Settlement Agreement, including providing notice to the settlement class members, calculating the individual payments, processing and distributing these payments after the Settlement Agreement is funded, and reporting such efforts to the court. Simpluris’ comprehensive fees and costs for administering this Settlement Agreement, covering both incurred and anticipated expenses, amount to \$8,000. (Weisel Decl., ¶ 19.) The court finds that these costs are reasonable in light of the experience and qualifications of Simpluris and the tasks Simpluris has agreed to undertake in this action. For all these reasons, the court will approve the settlement administration costs in the amount of \$8,000.

(13) Entry of Judgment by Separate Order

"If the court approves the settlement agreement after the final approval hearing, the court must make and enter judgment. The judgment must include a provision for the retention of the court's jurisdiction over the parties to enforce the terms of the judgment. The court may not enter an order dismissing the action at the same time as, or after, entry of judgment." (Cal. Rules of Court, rule 3.769(h).) Plaintiff shall lodge with the court a proposed judgment consistent with this ruling and the parties' Settlement Agreement and the California Rules of Court.

Judges

Judge Donna D. Geck

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